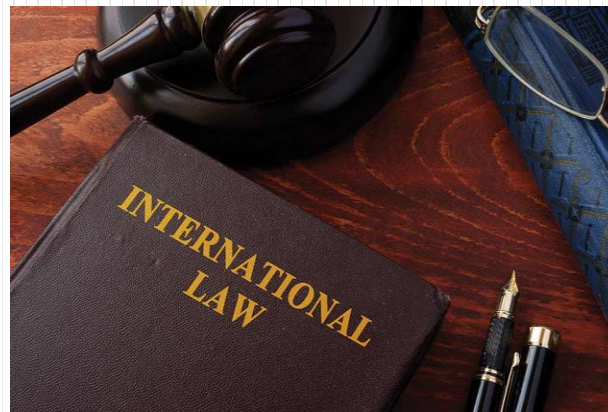


Public International Law

Chapter Eight Law of Treaties



Introduction: Importance of the Law of Treaties

- All kinds of inter-state transactions are conducted through treaties.
- Various international organizations are established by means of treaties.
- Dispute between states are brought before international courts by means of treaties.
- Therefore, the special importance of treaties in international law does not need emphasis.

Vienna Convention on Law of Treaties

- The main reference in this area of the law is *the Vienna Convention on the Law of Treaties, 1969*. [VCLT]
- Adopted on 23 May, 1969 and entered into force on 27 January, 1980.
- It is a combination of codification and progressive development of international law.
- *Definition of Treaties*
- *Schwarzenberger*: a treaty may be defined as a consensual engagement which *subjects of international law* have undertaken towards one another, with the intent to create legal obligations under international law.

Continued

- **Oppenheim**: international treaties are agreements, of a contractual character, **between states, or organizations of states**, creating legal rights and obligations between parties.
- Article 2
- 1. For the purpose of the present Convention:
- A. “treaty” means an international **agreement concluded between states in written form and governed by international law**, whether embodied in a single instrument or two or more related instruments and whatever its particular designation...

Continued

- **Article 3**
- The fact that the present Convention does not apply to international agreements concluded between states and **other subjects of international law** or between such other subjects of international law, or to international agreements **not in written form**, shall not effect:
 - A. the legal force of such agreements;...
- The definition of ‘treaty’ under **Article 2** of the Vienna Convention can be distinguished in two respects from the traditional definition.

Continued

1. It deals only with treaties concluded **between states** (this is because there is a separate convention on the law of treaties to which international organizations are parties).
2. The Convention is limited to '**written treaties**' only.
 - However, it is not intended to deny the legal effect of oral agreements under international law.
 - **An analysis of the definition of treaty**
 - The definition in the Vienna Convention is expressed to be for the purpose of the Convention and is **limited to treaties between states**.

Continued

- The following is an examination of the elements of the definition of treaty under Vienna Convention as supplemented by customary international law.
- 1. **An Agreement concluded between States: Treaty-making Capacity**
 - A. **States**
 - **Article 6** of the Convention, which provides that states may make treaties, reflects customary international law.
 - **Capacity to make treaties is, in fact, valuable evidence of statehood.**

Continued

- Federal States (Article 6, para. 2, Draft Articles)
- “States members of a federal union may possess a capacity to conclude treaties if such capacity is admitted by the federal constitution and within the limits there laid down”.

B. International Organizations

- The Vienna Convention on the Law of Treaties, 1969, is limited to treaties to which states are parties.
- It does not cover treaties to which public international organizations are parties.

Continued

- A special convention, *the Vienna Convention on the Law of Treaties between States and International Organizations or between International Organizations*, was signed in 1986.

C. Individuals

- Individuals have never been recognized as having the capacity to make treaties.
- Even transnational corporations (*TNCs*) have no such capacity.

Continued

- In *the Anglo-Iranian Oil Company case*, 1952 ICJ Rep. 93, the ICJ held that a contract between Iran and the Anglo-Iranian Oil Company was not a treaty.
- “it is nothing more than a concessionary contract between a government and a foreign company.”

2. *In Written Form*

- The Vienna Convention does not apply to *oral agreements*, although such agreements are *valid under customary international law*.

Continued

- Even though the traditional practice is for the original text of a treaty to be typed or printed, there is no reason why a treaty should not be contained in *a telegram, telex, fax message or even e-mail, or rather, constituted by an exchange of such communications.*

3. Governed by International Law

- There may be agreements between states (e.g. agreements for the acquisition of premises for a diplomatic mission or for some purely commercial transaction).

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- They are regulated by the local law of one of the parties or by conflict of law principles.
- The notion of an “international agreement” for the purposes of the law of treaties is confined to one the whole formation and execution of which is governed by international law.

4. Intention to Create Legal Obligations

- From practical point of view, the decisive factor is whether the instrument is intended to create international legal rights and obligations between the parties.

Continued

- This element of “intention to create legal obligations under international law” can be found in the traditional definitions of ‘treaty’ by an eminent writers but it is not expressly mentioned in the definition of ‘treaty’ in the Vienna Convention.
- *The ILC: the element of ‘intention’ is included in the phrase ‘governed by international law’. [see also Aegean Sea Continental Shelf Case] [p.209]*

Continued

5. *Whether embodied in a single instrument or in two or more related instruments*

- The classic form for a treaty is a *single instrument*.
- However, in modern practice treaties are made in less formal ways, such as *“exchange of notes” or “exchange of letters”*.
- An exchange of notes usually consists of an initial note (by one state) and a reply note (by the other state).
- In other words, it consists of two related instruments.

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- The above phrase clearly acknowledges the validity of the increasing use of such exchanges of notes and letters in modern treaty practice.
- 6. **Whatever its particular designation**
 - ‘Treaty’ is the generic term to embrace all types of binding international agreements.
 - In practice, a number of terms are used to indicate an international agreements.
 - The term ‘**treaty**’ itself is used to indicate **formal agreements relating to peace, alliance, or the cession of territory, extradition, or some other fundamental matter.**

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- ‘**Convention**’ is the term used for a proper formal instrument of a multilateral character.
- A ‘**protocol**’ is an instrument which is subsidiary or ancillary to a convention or is a supplementary treaty.
- An ‘**exchange of notes (or of letters)**’ is an informal method, very frequently adopted in recent years, whereby states reach to certain understanding or recognize certain obligations as binding them.

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A. Memorandum of Understandings (MOUs)

- The use of MOUs is now so widespread in state practice that governments may use the MOUs as the more usual form, a treaty being used only when it can not be avoided.
- The main reasons for using MOUs is preference to treaties are **confidentiality and convenience**.
- As an MOU is not a treaty, there is as a rule no domestic or international requirement to publish it.

Continued

- **Are MOUs treaties?**
- Generally speaking, MOUs are not treaties and they are not legally binding.
- An MOU can be a treaty in some cases but it cannot be so in other cases.
- Only by studying the terms of the instrument can determine its genuine status.
- **The decisive factor is whether there is an intention to create legal obligations.**

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- The actual practice of states is to indicate their intention to conclude a treaty by employing terminology such as *‘shall’, ‘agree’, ‘undertake’, and ‘enter into force’*.

B. Oral Undertakings

- According to customary international law writing is not an essential requirement of a treaty.
- An agreement or undertaking made orally between two states is as valid as a written treaty.

Legal Status of Eastern Greenland (Denmark v Norway), (1933) PCIJ Series A/B, No. 53

- **M. Ihlen**, in the course of further conversations with the Danish Minister, declared that “the Norwegian Government would not make any difficulty concerning the Danish claim”. [***This is known as the Ihlen Declaration***]
- Denmark argued before the ICJ that this undertaking was binding upon Norway.
- Held: the Court considers it beyond all disputes that ‘a reply of this nature’ given by ***the Minister of Foreign Affairs on behalf of his Government*** ‘in response to request by the diplomatic representative of a foreign power’, with regard to a question falling within his province, is binding upon the country to which the Minister belongs.

The Conclusion of Treaties

1. Treaty Making Capacity

- Full powers: Article 7
- 1. In virtue of their functions and without having to produce full powers, the following are considered as representing their state:
 - a) *Heads of State, Heads of Governments and Ministers of Foreign Affairs;*
 - b) *Head of diplomatic missions*, adopting the text of a treaty between the accrediting state and to the state to which they are accredited;...

2. Stapes to be taken in the making of a Treaty

- The various steps in the creation of a treaty are:
 1. Negotiation;
 2. Adoption and authentication of the treaty;
 3. The expression of consent to be bound by the treaty (signature, ratification, accession, etc.);
 4. Entry into force, and
 5. Registration and publication.

Continued

1. Signature

- The effect of signature of a treaty depends on whether or not the treaty is subject to ratification.
- If the treaty is subject to ratification, signature means no more than an authentication of its text.
- If the treaty is not subject to ratification, or is silent on this point, the better opinion is that, in the absence of contrary provision, the instrument is binding on signature.

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2. Ratification

- Ratification: ‘final confirmation’.
- Why ratification is required? Two reasons:
 - 1) A state requires an opportunity of re-examining the whole effect of the treaty upon their interests; may need to prepare public opinion (or sometimes even referendum) for the state is about to undertake.
 - 2) According to the constitutional law of many states, treaties are not valid without some kind of consent on the part of parliaments. (e.g. US Constitution)

Continued

- **What treaties require ratification?**
- The more formal the type of instrument adopted, the more likely is ratification to be required.
- **Procedure: the second step:**
- In the case of **bilateral treaty**, the exchange of the instrument of ratification with the corresponding instrument produced by the other party.
- In case of **multilateral treaty**: to deposit all instruments of ratification in a central headquarters such as the Foreign Office of the State where the treaty was signed.

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- *With regard to treaties concluded under the auspices of the UN*, the instruments of the ratification are to be deposited with the Secretary General of the UN.
- *Effects of a Treaty before Ratification or before entry into force [Article 18]*
- A state is obliged to refrain from acts which would defeat the object and purpose of a treaty when:
 - a) It has signed the treaty or exchanged instruments constituting the treaty subject to ratification, acceptance or approval, until it shall have made its intention clear not to become a party to the treaty; or

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- b) it has expressed its consent to be bound by the treaty, pending the entry into force of the treaty and provided that such entry into force is not unduly delayed.
- According to International Law Commission's Commentary, "that an obligation of 'good faith' to refrain from acts of calculated to frustrate the object of the treaty attaches to a state which has signed a treaty subject to ratification appears to be generally accepted".
- Certain German Interests in Polish Upper Silesia Case PCIJ (1926) Series A, No. 7, p. 30

Continued

- **Reservations**

- Definition – Article 2 (1) (d) of the VCLT:
- “A unilateral statement, however phrased or named, made by a State, when signing, ratifying, accepting, approving or acceding to a treaty, whereby it purports to exclude or to modify the legal effect of certain provisions of the treaty in their application to that State.
- Disguised reservations: (“however phrased or named”; to look at the substance).
- It is the substance that matters not the form.

Continued

- Interpretative declarations: (purpose – to establish an interpretation of the treaty which is consistent with the domestic law of the state).
- It will be an element in the interpretation of the treaty (if it is not a disguised reservation).
- If other parties do not make contrary declarations or indicate their disagreement, they may be regarded as having tacitly accepted it.

Continued

- **When reservations can be made [Article 19]**
- A State may formulate a reservation unless:
 - a) The reservation is prohibited by the treaty;
 - b) The treaty provides that only specified reservations, which do not include the reservation in question, may be made; or
 - c) In cases not falling under sub-paragraphs (a) and (b), the reservation is incompatible with the object and purpose of the treaty. [compatibility test]

Continued

- Compatibility test: examples
 - a) A reservation to the Convention against Torture (CAT) which sought to exclude from it torture of suspected (or even convicted) terrorists would be a clear case of incompatibility.
 - b) Guatemala made a reservation that Article 27 of the VCLT (non-invocation of internal law) would not apply in respect of the Guatemalan Constitution.
- The rule is so fundamental to the law of treaties, the reservation clearly pass the compatibility test.

Effects of Reservations on Participation in a Treaty

- By making a reservation, *a State is trying to modify the terms of the treaty.*
- A reservation can therefore be assimilated to the *refusal of an offer and the making of a fresh offer.*
- *In principle, this fresh offer must obtain the assent of the other contracting States if it is to be effective.*
- Therefore, the traditional view was that reservations to be effective required the acceptance of all the contracting States.

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- However, that view, although applicable to bilateral treaties, would not be appropriate, without qualifications, to multilateral conventions.
- ICJ in its advisory opinion on **Reservation to the Genocide Convention**, introduces **‘compatibility’ test**.
- A reservation may be made unless the treaty prohibits it or it is incompatible with the object and purpose of the treaty.
- Article 19, 20 and 21 of VCLT are generally in line with the conclusions reached by the World Court.

Continued

- Three options for the other states:
 - a) Acceptance (expressly or impliedly)
 - b) Mere rejection
 - c) Objection with a condition that the treaty shall not enter into force between the reserving and objecting State.
- A simple example
- There are three States: A, B and C
- State A made a reservation to a treaty.
- State B raised no objection.

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- State C objected and at the same time stated expressly that it precluded the treaty entering into force between it and State A.
- State A may be a party to the treaty in relation to State B, but not in relation to State C.
- There is no doubt State B and State C are mutually bound by the treaty after its entry into force.
- Legal effects of reservations and of objections to reservations – Article 21
- Principle of Reciprocity Article 21 (1)

Entry into Force

- A treaty often provides that it shall enter into force when it has been ratified or acceded to by a specific number of States.
- E.g., VCLT, 1969, provides for its entry into force on the 30th day following the date of the deposit of the 35th instrument of ratification or accession.
- The UN Convention on the Law of Sea, 1982, entered into force one year after the 60th ratification, namely on November 16, 1994.

Applications of Treaties

- *Binding force of Treaties*
- Pacta sunt servanda (Article 28)
- Every treaty in force is binding upon the parties to it and must be performed in good faith.
- *Treaty versus Municipal Law (Article 27)*
- A party may not invoke the provision of its internal law as justification for its failure to perform a treaty.
- This rule is without prejudice to Article 46.

Continued

- ***Non-retroactivity of Treaties (Article 28)***
- Unless a different intention appears from the treaty or is otherwise established, its provision do not bind a party in relation to any act or fact which took place or any situation which ceased to exist before the date of entry into force of the treaty with respect to that party.
- ***Application of Successive Treaties on the Same Subject Matter (Article 30)***
- If parties are identical, Lex posterior derogat legi priori applies.

Continued

- If parties are not identical, pacta tertiis nec nocent nec prosunt applies.
- Article 103 is known as “clause paramount”.
- Obligations under the UN Charter have primacy over obligations under any other party.
- Lockerbie case (provisional measures) 1992 ICJ Rep., 3, 114.
- Treaties and third parties, Article 34 and 35

Interpretation of Treaties

- According to *Fitzmaurice*, there are three traditional schools of treaty interpretation.
 1. *Textual School* – interpretation in accordance with the ordinary meaning of the words of the treaty;
 2. *Intention School* – interpretation in accordance with the intention of the parties.
 3. *Teleological School* – interpretation in accordance with the aims and purposes of the treaty.

General Rule of Interpretation

- Article 31
- Article 31 (1) comprises three integrated principles.
 1. Interpreted in good faith;
 2. In accordance with the ordinary meaning to be given to the terms of the treaty in their context.
 3. In the light of its object and purpose.
- Object and purpose is more for the purpose of confirming an interpretation.
- *Article 31 (1) contains both the textual and teleological approaches, it gives precedence to textual.*

Textual Interpretation is the Prevailing Approach

- *The general rule primarily adopts the textual approach.*
- The textual approach is the established *rule of customary international law.*
- *The jurisprudence of ICJ* also demonstrates that the textual interpretation is regarded by it *as established law.* See e.g.,
- Admission of the UN case,
- Competence of the GA case,
- Interpretation of Peace Treaties case.

The Importance of Subsequent Practice

- *The way in which the treaty is actually applied by the parties is a good indication of what they understand it to mean.*
- E.g. interpretation of Article 27 (3) of the Charter: nine votes including concurring votes of the permanent members;
- According to the practice of the members, '*concurring*' means '*not objecting*' (see e.g. abstention from voting)

Principle of Effectiveness

- The parties are assumed to intend the provisions of a treaty to have certain meaning, and not to be meaningless; *ut res magis valeat quam pereat* (it is better for a thing to have effect than to be made void).
- When a treaty is open to two interpretations, one of which does and the other does not enable the treaty to be effectively implemented, the former interpretation should be adopted.
- *Principle of effectiveness does not allow an interpretation going beyond what the text of the treaty justifies.*

Supplementary Meaning of Interpretation [Article 32]

- Recourse may be had to *supplementary means of interpretation, including the preparatory work of the treaty and the circumstances of its conclusion*, in order to *confirm the meaning resulting from the application of Article 31*, or *to determine the meaning when the interpretation according to Article 31:*
 - a) leaves the meaning ambiguous or obscure; or
 - b) Leads to a result which is manifestly absurd or unreasonable

Travaux Préparatoires (Preparatory Work)

- It generally means the records of negotiations between the states that participate in the drafting and records of the work of independent bodies of experts, such as the ILC.
- Admission of a State to the UN, (1948) ICJ Rep 57
- There is no occasion to resort to preparatory work if the text of a convention is sufficiently clear in itself.

Invalidity of Treaties

- The important grounds of invalidity:
 - 1) Violation of internal law on competence to conclude treaties; Article 46 and 47
 - 2) Error; Article 48
 - 3) Fraud; Article 49
 - 4) Corruption of a representative of a State; Article 50
 - 5) Coercion of a State; Article 52and
 - 6) Conflict with jus cogens, Article 53

Consequences of Invalidity

- The main difference between the groups of grounds for invalidity:
- *The relative grounds (violation of internal law on treaty-making, error, corruption)* invalidate only the consent of a State to be bound by the treaty.
- *The absolute grounds (coercion and jus cogens) invalidate the treaty itself and render it void ab initio.*
- However, the legal consequences will depend on whether the treaty is bilateral or multilateral.

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- In the case of **bilateral treaty**, the legal effect of establishing a relative ground is the same as that of establishing absolute invalidity: the treaty falls
- In the case of **multilateral treaty**, however, establishing an absolute ground means that the treaty is null and void and without legal effect, whereas, establishing a relative ground does not affect the validity of the treaty as a whole as between the other remaining parties.

Termination of The Operation of Treaties

- Internal and external grounds for termination
- **Internal Ground**: Article 54
- Practically, the majority of modern treaties contain provisions for termination or withdrawal.
- Sometimes, the treaty shall come to an end automatically after a certain time.
- **External Grounds**: there are three external grounds:
 1. Material breach (Article 60);
 2. Supervening impossibility of performance (Article 61); and
 3. Fundamental change of circumstances (Article 62)

Continued

1. Material Breach (Article 60)

- The general rule is that a right to terminate does not arise unless the breach is **a material (that is serious) one.**
- Article 60 (3) defines a material breach as
 - a) A repudiation of the treaty not sanctioned by the present convention; or
 - b) The violation of a provision essential to the accomplishment of the object and purpose of the treaty.

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- **Breach of a Bilateral Treaty**
- In a bilateral treaty, such a material breach enables the injured party to terminate or suspend the treaty at its discretion. Article 60 (1).
- The injured party's right to terminate or suspend a treaty is one of the main sanctions for breach of a treaty, but is not the only one.
- There is nothing to prevent the injured State claiming compensation instead of, or in addition to, exercising its right under the Convention.

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- **Breach of a multilateral treaty**
- The problem is more complicated if the treaty is multilateral.
- It is obvious that breach by a State party cannot entitle the injured party to denounce the treaty, that would not be fair to other parties.
- Article 60 (2): therefore, a material breach of a multilateral treaty enables all the parties by unanimous decision to terminate the treaty altogether or to terminate it for the defaulting State only.

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- Article 60 (2): likewise, a single State, which is specially affected by a material breach, may suspend the treaty between itself and the defaulting State.
- Gabčíkovo Nagymaros Project Case

2. Supervening Impossibility of Performance, Article 61

- Article 61 of the VCLT limits this ground to the permanent disappearance or destruction of an object indispensable for the execution of the treaty.
- It cannot be invoked by a party that was itself instrumental in causing these circumstances to come about by the breach of its treaty obligations or other international obligation.
- Gabčíkovo Nagymaros Project Case

Fundamental Change of Circumstances (rebus sic stantibus) (Article 62)

- It is better to be cautious in referring to this doctrine.
- Stability of treaty relations is so important and a balance must be struck.
- According to modern international law, the rule fundamental change of circumstances applies only in the most exceptional circumstances; otherwise it could be used as an excuse to evade all sorts of inconvenient treaty obligations.
- Article 62 confines the rule within very narrow limits.

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- Article 62 (1): a fundamental change of circumstances – not foreseen by the parties; the existence of those circumstances must constitute an essential basis of the consent to be bound; the effect of the change is radically to transform the extent of the obligation still to be performed under the treaty.
- Article 62 (2):
 1. It may not be invoked in relation to a treaty establishing a ‘boundary’; and

Continued

2. As with Article 61, a State may not invoke Article 62 if the change was caused by a breach of its own international obligations, either under the treaty in question or any other international agreement.
- Fisheries Jurisdiction Case (Jurisdiction) (1974) ICJ Rep. 3